

No. 26-_____

**IN THE UNITED STATES COURT OF APPEALS
FOR THE FIFTH CIRCUIT**

IN RE CORY J. BENNETT,
Petitioner.

On Emergency Petition for a Writ of Mandamus to the
United States District Court for the Western District of Texas,
Austin Division, No. 1:26-cv-01601-RP-DH

**MOTION FOR LEAVE TO PROCEED
IN FORMA PAUPERIS**

Petitioner Cory J. Bennett, proceeding pro se, respectfully moves under 28 U.S.C. § 1915(a) and Federal Rule of Appellate Procedure 24 for leave to proceed in this original proceeding without prepayment of the \$600 docket fee.

Certificate of Interested Persons

The undersigned certifies, pursuant to Fifth Circuit Rules 27.4 and 28.2.1, that the persons and entities interested in the outcome of this case are those identified in the Certificate of Interested Persons in the accompanying petition.

Basis for Relief

This proceeding is a petition under Federal Rule of Appellate Procedure 21. The current Fifth Circuit fee schedule requires a \$600 docket fee for an original proceeding.

Petitioner filed an application to proceed in forma pauperis in the district court on June 12, 2026. The clerk entered that application as Dkt. 3 on June 23. The district court has neither granted nor denied it. Federal Rule of Appellate Procedure 24(a)(3) therefore does not authorize Petitioner to proceed in this Court on the basis of a prior grant of IFP status. The pending character of Dkt. 3 is part of the delay that the petition asks this Court to address.

The district-court financial affidavit submitted under 28 U.S.C. § 1915(a)(1) establishes that prepayment of fees and costs would prevent Petitioner from meeting ordinary living expenses. Petitioner's financial condition has not improved since that affidavit was executed. Petitioner remains unable to prepay the \$600 fee for this original proceeding.

The district court restricted public access to the unredacted financial affidavit. Attached as Exhibit A are the motion seeking that restriction and the redacted sworn financial affidavits submitted in support of Dkt. 3. Those materials provide the financial information underlying Petitioner's district-court IFP application while omitting the residential address and limited nonparty identifying information restricted below. Petitioner will provide any additional affidavit or unredacted information in the form and manner the Clerk or Court directs.

The petition asks this Court to require the district court to decide the pending IFP application, complete the review required by 28 U.S.C. § 1915(e)(2), and determine whether process may issue. Petitioner leaves the merits of those matters, and any later preliminary injunction, to the district court.

Petitioner believes the petition is taken in good faith. The petition seeks an order compelling the exercise of jurisdiction.

Relief Requested

Petitioner respectfully requests that the Court grant leave to proceed in this original proceeding in forma pauperis and waive prepayment of the docket fee.

No Defendant has been served with process or appeared in the district-court action, and no opposing counsel is of record. Accordingly, copies of this filing have been served on the trial-court judges as required by Federal Rule of Appellate Procedure 21(a)(1).

Respectfully submitted,

Dated: August 19, 2026

s/ Cory J. Bennett

Cory J. Bennett, Petitioner Pro Se

Mailing Address: 6705 W Highway 290

Ste 607 PMB #268

City/State/ZIP: Austin, TX 78735-8407

Telephone: (512) 630-5607

Email: csquaredbennett@gmail.com

Statement Regarding Filing and Rule 21 Service

I certify that on August 19, 2026, I filed this Motion with the Petition for Writ of Mandamus and the Emergency Motion for Expedited Consideration with the Clerk of the United States Court of Appeals for the Fifth Circuit. No separate service on a Defendant or opposing counsel is claimed because, at the time of filing, no Defendant has been served with process or appeared in the district-court action and no opposing counsel is of record. The petition states the corresponding Rule 21 service circumstances and provides that copies are being provided to the trial-court judges.

s/ Cory J. Bennett

Cory J. Bennett, Petitioner Pro Se

Certificate of Compliance

This motion complies with the length limits of Federal Rule of Appellate Procedure 27(d)(2) and with the typeface requirements of Rules 32(a)(5) and 32(a)(6), as made applicable by Rule 32(c)(2), because it has been prepared in a proportionally spaced typeface using L^AT_EX in 14-point Times and contains 410 words. A motion produced using a computer may not exceed 5,200 words.

s/ Cory J. Bennett

Cory J. Bennett, Petitioner Pro Se

Exhibit A

District-court motion to restrict access and redacted IFP affidavits

**UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF TEXAS
AUSTIN DIVISION**

CORY J. BENNETT, Plaintiff,

Civil Action No. 1:26-cv-01601

v.

**THE UNIVERSITY OF TEXAS AT AUSTIN;
EMILY HSIAO; JAMES G. SCOTT; SALLY K.
RAGSDALE; JAY BARTROFF; KELLI
BRADLEY; and JEFF GRAVES**, Defendants.

**PLAINTIFF’S MOTION TO RESTRICT ACCESS TO UNREDACTED
IFP AFFIDAVIT AND SUBSTITUTE REDACTED COPY**

Plaintiff Cory J. Bennett, proceeding pro se, respectfully moves the Court to restrict public access to the unredacted Application to Proceed In Forma Pauperis and Financial Affidavit submitted with Plaintiff’s initiating papers, and to permit Plaintiff to substitute the attached redacted public copy omitting Plaintiff’s residential address and limited non-party identifying information. In support, Plaintiff states:

1. Plaintiff filed this civil-rights action and related initiating papers on June 12, 2026. Plaintiff’s public complaint, proposed summonses, and application for electronic filing use Plaintiff’s mailing address at a private mailbox, where Plaintiff can receive court mail.
2. The Austin Division IFP financial affidavit requested Plaintiff’s “Home Address.” Plaintiff completed that field in the unredacted affidavit submitted with the initiating papers.
3. Plaintiff requests narrow redaction or restriction only of Plaintiff’s residential address and the name of a non-party family member listed only to identify title ownership of

a vehicle disclosed in the IFP materials. Plaintiff does not seek to seal the complaint, the exhibits, the case, or the factual allegations.

4. Good cause exists because public disclosure of Plaintiff's residential address creates personal-safety and retaliation concerns in this civil-rights action. In connection with Plaintiff's external reporting of the underlying events to federal law enforcement, Plaintiff was advised to avoid public disclosure of his residential address for safety reasons. Plaintiff does not include the name of the federal employee, report number, or underlying communication in this motion because those details are not necessary to the requested relief and may concern nonpublic reporting information. Plaintiff's residential address is not material to the merits of the claims or to the Court's determination of indigency.
5. Federal Rule of Civil Procedure 5.2(e) permits the Court, for good cause, to require redaction of additional information, and Rule 5.2(f) permits an unredacted copy to be filed under seal. Local Rule CV-5.2 also contemplates redaction or sealed/restricted treatment of confidential information when necessary. Plaintiff's mailing address remains available for service and court communications, and the Court may retain the unredacted IFP financial affidavit under restricted access for its review.

WHEREFORE, Plaintiff respectfully requests that the Court:

- A. restrict public access to the unredacted IFP application and financial affidavit submitted with Plaintiff's initiating papers;
- B. permit Plaintiff to file or substitute the attached redacted public copy omitting Plaintiff's residential address and limited non-party identifying information;
- C. direct the Clerk to maintain the unredacted IFP financial affidavit under restricted access for Court review; and
- D. grant such other relief as the Court deems just and proper.

Respectfully submitted,

Dated: June 12, 2026



Cory J. Bennett, Plaintiff Pro Se

Mailing Address: 6705 W Highway 290

Ste 607 PMB #268

City/State/ZIP: Austin, TX 78735-8407

Telephone: (512) 630-5607

Fax: None

Email: csquaredbennett@gmail.com

Attachment 4 - Motion to Proceed in Forma Pauperis

AO 240 (Rev. 01/09) Application to Proceed in District Court Without Prepaying Fees or Costs (Short Form)

UNITED STATES DISTRICT COURT

for the

Western District of Texas

Cory J. Bennett

Plaintiff

v.

The University of Texas at Austin;

Emily Hsiao; James G. Scott; Sally K. Ragsdale;

Jay Bartroff; Kelli Bradley; Jeff Graves

Civil Action No. 1:26-cv-01601

APPLICATION TO PROCEED IN DISTRICT COURT WITHOUT PREPAYING FEES OR COSTS
(Short Form)

I am a plaintiff or petitioner in this case and declare that I am unable to pay the costs of these proceedings and that I am entitled to the relief requested.

In support of this application, I answer the following questions under penalty of perjury:

1. *If incarcerated.* I am being held at: _____.

If employed there, or have an account in the institution, I have attached to this document a statement certified by the appropriate institutional officer showing all receipts, expenditures, and balances during the last six months for any institutional account in my name. I am also submitting a similar statement from any other institution where I was incarcerated during the last six months.

2. *If not incarcerated.* If I am employed, my employer's name and address are:

My take-home pay or wages are: _____ per (specify pay period) _____.

3. *Other Income.* In the past 12 months, I have received income from the following sources (check all that apply):

- | | | |
|--|------------------------------|--|
| (a) Business, profession, or other self-employment | ☐ Yes | ☒ No |
| (b) Rent payments, interest, or dividends | ☐ Yes | ☒ No |
| (c) Pension, annuity, or life insurance payments | ☐ Yes | ☒ No |
| (d) Disability, or worker's compensation payments | ☐ Yes | ☒ No |
| (e) Gifts, or inheritances | ☐ Yes | ☒ No |
| (f) Any other sources | ☐ Yes | ☒ No |

If you answered "Yes" to any question above, describe below or on separate pages each source of money and state the amount that you received and what you expect to receive in the future.

4. Amount of money that I have in cash or in a checking or savings account: .

\$1,274.06 .

5. Any automobile, real estate, stock, bond, security, trust, jewelry, art work, or other financial instrument or thing of value that I own, including any item of value held in someone else's name (*describe the property and its approximate value*):

\$4,695.00 - 2007 Toyota Yaris Hatchback ()

6. Any housing, transportation, utilities, or loan payments, or other regular monthly expenses (*describe and provide the amount of the monthly expense*):

Feb.-May 2026 net statement outflows average approx. \$568.32/month.

Gasoline/fuel avg. \$105.91.

Food/groceries/dining avg. \$194.32.

Prescriptions \$32.98.

Other miscellaneous avg. \$234.28.

7. Names (or, if under 18, initials only) of all persons who are dependent on me for support, my relationship with each person, and how much I contribute to their support:

8. Any debts or financial obligations (*describe the amounts owed and to whom they are payable*):

Unpaid medical bills totaling \$461.86:

Baylor Scott & White (\$111.86)

Thrive Medical (\$100.00)

Austin-Travis County EMS (\$250.00)

Declaration: I declare under penalty of perjury that the above information is true and understand that a false statement may result in a dismissal of my claims.

Date: June 11, 2026

Cory Bennell

Applicant's signature

Cory J. Bennett

Printed name

**Attachment 5 - Application to Proceed *In Forma Pauperis* and Financial Affidavit in
Support (Austin Division ONLY)**

IN THE UNITED STATES DISTRICT COURT
FOR THE WESTERN DISTRICT OF TEXAS
AUSTIN DIVISION

	§	
Cory J. Bennett	§	
V.	§	Case No. <u>1:26-cv-01601</u>
The University of Texas at Austin;	§	
Emily Hsiao; James G. Scott; Sally K. Ragsdale;	§	
Jay Bartroff; Kelli Bradley; Jeff Graves	§	

**APPLICATION TO PROCEED IN FORMA PAUPERIS
AND FINANCIAL AFFIDAVIT IN SUPPORT**

I, Cory J. Bennett
declare that I am the Applicant in the above-entitled proceeding. I am requesting permission to proceed without being required to prepay fees, costs, or give security therefor. In support of my application, I state that because of my poverty, I am unable to pay the costs of said proceeding or give security therefor and I believe I am entitled to relief. The nature of my action is briefly stated as follows:

Federal disability-discrimination, retaliation, due-process, and First Amendment
claims against a public university and individual state actors.

In further support of this application, I answer the following questions:

Applicant's Name: Cory J. Bennett

Applicant's Home Address:

Questions Regarding Ability to Pay

Employment:

Are you now employed? Yes ☐ No ☒ Am Self Employed ☐

If yes, how much do you earn per month? \$ _____

If no, give month and year of last employment: _____

How much did you earn per month? \$ _____

Name and Address of current or prior employer: _____

If married, state Spouse's name: _____

Is your Spouse employed? Yes ☐ No ☐

If working, how much does your spouse earn? \$ _____

Do you receive any funds from relatives or for child support? If so, how much per month do you receive? \$ _____

Other Income:

Have you received within the past 12 months any income from a business, profession or other form of self-employment, or in the form of rent payments, interest, dividends, retirement or annuity payments (such as Social Security benefits), or other sources, including government benefits (such as A.F.D.C. or Social Security disability benefits)? Yes ☐ No ☒

If yes, give the amount and identify the sources:

<u>Received</u>	<u>Sources</u>
\$ _____	_____
\$ _____	_____
\$ _____	_____
\$ _____	_____

Cash:

Have you any cash on hand or money in savings or checking accounts? Yes ☒ No ☐

If yes, state total amount: \$ 1,274.06

If neither you nor your spouse receive income of any kind, how are you able to pay for food and shelter?

Food and other living expenses are paid from existing bank-account funds.
I do not pay shelter or insurance costs directly.

Property:

Do you own any real estate, stocks, bonds, notes, automobiles, or other valuable property (excluding ordinary household furnishings and clothing)? Yes ☒ No ☐

If yes, give value and describe it and say in whose name the property is registered.

<u>Value</u>	<u>Description</u>
\$ <u>4,695.00</u>	<u>2007 Toyota Yaris Hatchback ([REDACTED])</u>
\$ _____	_____
\$ _____	_____
\$ _____	_____

Family Status and Dependents:

Marital Status: Single ☒ Married ☐ Widowed ☐ Separated ☐ or Divorced ☐

Total Number of Dependents: 0

Are any of your dependents employed? If so, where:

How much do your dependent(s) earn monthly? \$ 0

List persons you actually support, your relationship to them:

None

Do you pay alimony or child support or any other court-ordered payments? Yes ☐ No ☒

If yes, list how much and describe:

Monthly Debts of Applicant and/or Dependents

Type of Debt

Name of Creditor
Total Debt
Payment

Medical bill

Baylor Scott & White

\$ 111.86

\$ 0

Medical bill

Thrive Medical

\$ 100.00

\$ 0

Medical bill

Austin-Travis County EMS

\$ 250.00

\$ 0

\$ _____

\$ _____

Monthly Expenses of Applicant and/or Dependents

Rent or House Payment:

\$ 0

Electric & Water Bills:

\$ 0

Gas:

\$ 105.91

Phone:

\$ 0

Insurance:

\$ 0

For what purpose: _____

Prescriptions: \$ 32.98

For what purpose: Prescription medication.

Transportation/Car Payments: \$ 0

For what purpose:

Medical Bills: \$ 0

For what purpose:

Legal Bills: \$ 0

For what purpose:

Loans: \$ 0

For what purpose:

Miscellaneous: \$ 428.60

For what purpose: Food/groceries/dining avg. \$194.32; other misc avg. \$234.28.

Is there any more information the Court should consider in making its determination?

In Fall 2025 (Aug.-Dec.), I incurred significant medical/disability-related expenses
for orthopedics, chiropractic care, physical therapy, clinic care, and ER bills.

These injuries/conditions have ongoing effects; I recently renewed a second
temporary disability placard after an initial six-month placard.

AFFIDAVIT OF APPLICANT

I declare under penalty of perjury the above answers and statements to be true and correct to the best of my knowledge. I understand that this affidavit will become an official part of the United States District Court files and that any false or dishonest answer or statements knowingly made by me in this Financial Affidavit are illegal and may subject me to criminal penalties, including any applicable fines or imprisonment, or both.

Signature: Cory Bennett

Printed Name: Cory J. Bennett

Date: June 11, 2026